

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

GUY MCEACHIN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL SINTO, Tax No. 964778, SERGEANT
NICHOLAS MURRAY, Tax No. 955244, and POLICE
OFFICERS JOHN DOES #s 1-10 (names and numbers of
whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Queens
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 11, 2022

Yours, etc.

*David Hazan*_____
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MICHAEL SINTO, Tax No. 964778, 101st Precinct, 1612 Mott Ave,
Far Rockaway, New York 11691
SERGEANT NICHOLAS MURRAY, Tax No. 955244, Patrol Bureau Queens South
Public Safety Teams, Patrol Bureau Queens South Public Safety Teams.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff GUY MCEACHIN, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on February 11, 2019, at approximately 7:00 pm, he was lawfully present on the 7th Floor of 13-02 Redfern Avenue, Far Rockaway, New York 11691 when defendants unlawfully stopped, questioned, frisked, searched, seized, falsely arrested and falsely imprisoned plaintiff without probable cause or legal justification. Thereafter, defendants transported plaintiff to the 101st Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell against his will. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control. Defendants provided the Queens County District Attorney's Office with false, misleading, and incomplete evidence and allegations about the evidence they allegedly possessed that purportedly formed defendants' basis for arresting plaintiff. Plaintiff was transported to Queens County Central Booking whereat the unlawful detention continued for many additional hours. On February 13, 2019, a criminal prosecution was initiated against plaintiff without probable cause based upon the false, misleading, and incomplete evidence provided by the defendants and contained in the criminal court complaint that was executed by defendants. On February 13, 2019, plaintiff was

arraigned in Queens County Criminal Court and charged with crimes he did not commit and for which defendants lacked probable cause to accuse him of committing. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner. Plaintiff was remanded into New York City Department of Corrections custody at arraignment, and he was detained on Riker's Island until March 20, 2020, when he was released from custody due to the COVID outbreak. Throughout the course of the malicious criminal prosecution against plaintiff, he was required to appear in Court to address the false charges brought against him on approximately 31 occasions before all charges were dismissed and sealed in their entirety on November 19, 2021. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff GUY MCEACHIN is a resident of the state of New York.
3. Defendant POLICE OFFICER MICHAEL SINTO, Tax No. 964778, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER MICHAEL SINTO, Tax No. 964778, was at all times relevant herein, assigned to the 101st Precinct.
5. Defendant POLICE OFFICER MICHAEL SINTO, Tax No. 964778, is being sued in his individual and official capacity.
6. Defendant SERGEANT NICHOLAS MURRAY, Tax No. 955244, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant SERGEANT NICHOLAS MURRAY, Tax No. 955244, was at all times relevant herein, assigned to the 101st Precinct and is currently assigned to the Patrol Bureau Queens South Public Safety Teams.
8. Defendant SERGEANT NICHOLAS MURRAY, Tax No. 955244, is being sued in his individual and official capacity.
9. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK and also attended a 50-h Hearing on February 2, 2022, in compliance with the Municipal Law Section 50.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On or about February 11, 2019, at approximately 7:00 pm, plaintiff was lawfully present on the 7th Floor of 13-02 Redfern Avenue, Far Rockaway, New York 11691 when defendants unlawfully stopped, questioned, frisked, searched, seized, falsely arrested and falsely imprisoned plaintiff, without probable cause or legal justification.

18. By way of background, in 2019 plaintiff lived with his cousin in a building owned and operated by the New York City Housing Authority (“NYCHA”), and plaintiff had keys to the building and the apartment where he lived.

19. Plaintiff’s cousin is disabled and cannot walk upstairs.

20. A few weeks prior to the underlying incident in this case, NYCHA notified plaintiff’s cousin that the elevators in his building needed to be repaired and would be out of service for a period of time.

21. Since plaintiff's cousin was physically unable to walk upstairs, NYCHA arranged for him to temporarily move into another apartment that happened to be vacant in the NYCHA housing complex, in a building where the elevators were functional.

22. Plaintiff moved into the temporary apartment with his cousin and had keys to the building and apartment where they temporarily moved.

23. The temporary apartment was located on the 7th Fl. of 13-02 Redfern Ave.

24. . The superintendent of the building complex was aware of the fact that plaintiff's cousin was temporarily moved to a new apartment while the elevator in his building was repaired.

25. Additionally, the superintendent knew that plaintiff lived with his cousin and moved to the temporary apartment with him.

26. A few days before February 11, 2019, plaintiff traveled to New Jersey to stay with his son for a few days.

27. Plaintiff returned to his apartment from New Jersey on February 9, 2019, and when he attempted to access the temporary apartment he realized the locks had been changed and he could not enter the apartment.

28. Plaintiff immediately contacted the superintendent who advised plaintiff that his cousin was moved back to their old apartment because the elevators were fixed in the building where their permanent apartment was located.

29. Plaintiff told the superintendent that he needed to get back into the temporary apartment because his belongings were in the apartment.

30. The superintendent told plaintiff that he could retrieve his belongings from the apartment on February 11, 2019.

31. Therefore, all of plaintiff's belongings remained in the apartment and plaintiff returned to the temporary apartment to retrieve his belongings on February 11, 2019, at 7:00 pm, but the superintendent was not available to let him into the apartment to get his belongings.

32. Someone who lived in the building that did not know plaintiff saw plaintiff in the building attempting to access the apartment to retrieve his belongings and as a precaution in the event plaintiff did not belong in the building, the individual called the police.

33. On February 11, 2019, at approximately 7:00 pm the defendants arrived on the 7th floor of 13-02 Redfern Avenue and plaintiff explained to them that he was temporarily living in the apartment while his building underwent repairs, but they changed the locks to the apartment without notifying him to return to the permanent apartment while he was away for a few days.

34. Furthermore, he explained that his belongings were locked inside of the apartment, and that he was trying to retrieve his belongings from the apartment.

35. Additionally, plaintiff advised the officers that the superintendent of the building was aware of the situation, and he asked the officers to contact the superintendent if they did not believe him.

36. Plaintiff possessed keys to the building, and he showed the keys to the officers.

37. The officers did not contact the superintendent of the building to verify plaintiff's version of events.

38. Instead, the defendants unlawfully handcuffed plaintiff and falsely arrested him, without probable cause to believe he committed a crime.

39. The officers claim that they contacted the superintendent of the entire apartment complex who was an individual who would have no idea about plaintiff's situation, as opposed to the superintendent responsible for the buildings where plaintiff lived who would have been able to explain the entire situation to the police officers.

40. The officers transported plaintiff to the 101st precinct against his will whereat he was unlawfully strip searched, searched, fingerprinted, photographed, and detained in a holding cell for many hours.

41. Eventually plaintiff was transported to Queens County Central Booking whereat the unlawful detention continued.

42. The officers provided the District Attorney's Office with false, misleading, and incomplete evidence and information regarding the facts and evidence in their possession that allegedly established a legal basis for the officers to arrest claimant and charge him with crimes.

43. Based upon the false, incomplete, and misleading information provided by the officers, claimant was maliciously prosecuted and denied the right to a fair trial in violation of the Fifth Amendment to the United States Constitution.

44. . Plaintiff was arraigned in Queens County Criminal Court on February 13, 2019 and charged with crimes that the officers lacked probable cause to accuse him of committing, including burglary and criminal trespass.

45. At arraignment, the Court set bail based upon the false allegations against plaintiff made by defendants, and plaintiff was unable to post bail.

46. Plaintiff was remanded into New York City Department of Corrections custody until March 20,2020 when he was released from custody due to the COVID outbreak.

47. Throughout the course of the malicious criminal prosecution against plaintiff, he was required to appear in Court to address the false charges brought against him on approximately 31 occasions before all charges were dismissed and sealed in their entirety on November 19, 2021.

48. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

49. At no time relevant herein did plaintiff attempt to burglarize or break into an apartment that he was unauthorized to enter,

50. The defendants unlawfully handcuffed plaintiff, without probable cause or legal justification.

51. At all times relevant herein plaintiff was present in the living room of the apartment.

52. Although defendants failed to recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control, and lacked probable cause to believe plaintiff committed a crime or violated the law in any manner, the defendants unlawfully handcuffed and falsely arrested plaintiff.

53. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

54. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

55. Defendants falsely arrested plaintiff, without probable cause or legal justification.

56. Defendants violated plaintiff's right to due process when they provided the District Attorney's Office with false, misleading, and incomplete evidence which formed the basis for initiating the criminal prosecution against plaintiff.

57. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, questioned, frisked, and falsely arrested plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

58. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to

intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

59. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

60. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

61. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

62. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

63. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

64. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

65. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The individually named police officer defendants while acting in concert and within the scope of their authority caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free of an unreasonable search and seizure and denial of the right to due process pursuant to the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty pursuant to the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. Defendants lacked probable cause to search plaintiff.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process/ Right to a Fair Trial

81. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 80 with the same force and effect as if fully set forth herein.

82. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

83. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

84. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

85. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

86. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Failure to Intervene

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

95. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

99. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, and denied plaintiff the right to due process without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

103. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

104. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

105. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

106. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

107. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

108. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

109. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

110. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

111. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

112. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

113. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff GUY McEACHIN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 11, 2022

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 11, 2022

David Hazan

DAVID M. HAZAN